

STATE OF NEW YORK

8386--A

2025-2026 Regular Sessions

IN ASSEMBLY

May 13, 2025

Introduced by M. of A. BURROUGHS, MEEKS, LEE, CHANDLER-WATERMAN, SAYEGH, SOLAGES, GIBBS, WRIGHT, TAYLOR, SEAWRIGHT, VANEL, FORREST, CUNNINGHAM, ANDERSON, HOOKS, HYNDMAN, O'PHARROW -- read once and referred to the Committee on Governmental Operations -- recommitted to the Committee on Governmental Operations in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the executive law, in relation to the creation of a "ebony alert system" for missing Black youth

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The executive law is amended by adding a new section 837-f-3 to read as follows:

§ 837-f-3. Ebony alert system. 1. The division of criminal justice services, through the missing children clearinghouse and in consultation with the division of state police, shall establish and maintain an ebony alert system on behalf of Black youth, to provide prompt dissemination of information to the public regarding missing persons who meet the criteria established pursuant to this section.

2. A law enforcement agency investigating a missing person case may request activation of an ebony alert through the missing children clearinghouse. Upon receipt of such request, the division, through the missing children clearinghouse and in coordination with the division of state police, shall evaluate the request and determine whether activation criteria have been met.

3. An ebony alert may be activated when the division determines that:
(a) the missing person is twelve to twenty-five years of age, inclusive;

(b) the disappearance of such person is unexplained or suspicious;

(c) the missing person suffers from a mental or physical disability;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD09408-02-6

1 (d) the missing person may be at risk of harm, including but not
2 limited to trafficking, exploitation, or other criminal activity;

3 (e) the individual is believed to be in danger or otherwise in peril;
4 and

5 (f) sufficient descriptive information is available that dissemination
6 to the public could assist in the safe recovery of such person.

7 4. Upon activation of an ebony alert, the division may disseminate
8 information regarding the missing person through appropriate communi-
9 cations systems, including but not limited to:

10 (a) law enforcement communications networks;

11 (b) broadcast and digital media outlets;

12 (c) wireless emergency alerts or other public alert notification
13 systems;

14 (d) internet or social media platforms utilized by the division or
15 participating agencies; and

16 (e) other public notification systems utilized by the missing children
17 clearinghouse.

18 5. In implementing the ebony alert system, the division shall coordi-
19 nate with the division of state police, the division of homeland securi-
20 ty and emergency services, the department of transportation, local law
21 enforcement agencies, and other appropriate entities involved in missing
22 persons investigations.

23 6. The department of transportation may assist in disseminating ebony
24 alert information through dynamic message signs or other highway commu-
25 nication systems, provided that such use complies with applicable feder-
26 al laws and regulations governing highway signage.

27 7. When the division determines that a missing person subject to an
28 ebony alert may have crossed jurisdictional boundaries, the division may
29 coordinate with law enforcement agencies in other states or jurisdic-
30 tions to disseminate alert information and facilitate recovery.

31 8. In administering the ebony alert system, the division shall ensure
32 that dissemination of information is conducted in a manner consistent
33 with applicable state and federal privacy laws and regulations and that
34 information released to the public is limited to that necessary to
35 assist in the recovery of the missing person.

36 9. The commissioner, in consultation with the division of state police
37 and the missing children clearinghouse, shall promulgate rules and regu-
38 lations necessary to implement the provisions of this section.

39 10. The ebony alert system established pursuant to this section shall
40 operate in coordination with other statewide missing persons alert
41 systems administered by the division. The division shall determine
42 whether activation of an ebony alert is appropriate when the circum-
43 stances of the disappearance do not meet the criteria for activation of
44 another missing persons alert system administered by the division. Noth-
45 ing in this section shall be construed to permit the simultaneous acti-
46 vation of multiple statewide alert systems for the same missing person.

47 § 2. The commissioner of the division of criminal justice services
48 shall submit an annual report to the governor and legislature regarding
49 the activities of the ebony alert system, including statistical informa-
50 tion involving reported cases of missing individuals that meet the
51 criteria established under section 837-f-3 of the executive law and a
52 summary of the division's efforts with respect to the activities author-
53 ized under this act.

54 § 3. This act shall take effect on the ninetieth day after it shall
55 have become a law.